

Ashutosh Kumar Srivastava vs State Of U.P. And Others on 1 October, 2010

Author: S.C. Agarwal

Bench: S.C. Agarwal

HIGH COURT OF JUDICATURE AT ALLAHABAD

Court No. 50

Criminal Revision No. 1076 of 2010

Ashutosh Kumar Srivastava & othersRevisionists

Versus

State of U.P. & othersRespondents

Hon'ble S.C. Agarwal, J

This revision is directed against the order dated 10.12.2009 passed the Addl. District and Sessions Judge, Court No. 12, Varanasi in Criminal Revision No. 174 of 2009 (Anil Kumar Srivastava Vs. Ashutosh Kumar Srivastava), whereby the order dated 18th April, 2009 passed by the C.J.M. Varanasi rejecting the protest petition of opposite party no. 2 in case crime no. 651 of 2008, under Sections 498A, 323, 506 IPC and Section 3/4 D.P. Act has been set aside and the matter was remanded to the Magistrate concerned for taking a fresh decision on the final report and the protest petition.

Heard Sri S.B. Kochar, learned counsel for the revisionists, learned AGA for the State and Sri Sanjai Kumar Pandey holding brief for Sri Manish Kumar Nigam, learned counsel for opposite party no. 2.

The facts are that FIR was lodged by opposite party no. 2 against the revisionists for having

committed offence punishable under Sections 498A, 323, 506 IPC and $\frac{3}{4}$ D.P. Act alleging therein that Sweta, daughter of opposite party no. 2 was married with revisionist no. 1 and after marriage she was harassed by revisionists on account of demand of Rs. 20,000/- in cash and a car as dowry. She was also beaten by the revisionists on 25th April, 2008. After investigation, police submitted final report. Notice was issued to the complainant, who filed a protest petition. Learned Magistrate, by order dated 18th April, 2009, rejected the protest petition and accepted the final report submitted by the police.

Feeling aggrieved, opposite party no. 2-complainant preferred a revision before learned Sessions Judge, Varanasi, which was allowed vide judgment and order dated 10th December, 2009 passed by the Addl. Sessions Judge, Court No. 12, Varanasi and the Magistrate was directed to reconsider the matter and to take decision in accordance with certain directions in light of Division Bench decision of this Court in the matter of Pakhandu & others Vs. State of U.P. & others, 2002 (1) JEC 104. Hence this revision.

Learned counsel for the opposite party no. 2 filed counter affidavit.

Learned counsel for the revisionists submitted that the parties have come to terms and compromise petition has been filed by the revisionist no. 1 and his wife and daughter of opposite party no. 2 in the Family Court, Lucknow, where a divorce petition no. 2205 of 2008, under Section 13 of the Hindu Marriage Act was pending. The compromise petition has been verified by the Family Court and the same has been accepted by the Family court.

Certified copy of the compromise deed dated 3.8.2010 alongwith order passed by the Family Court dated 4.8.2010 accepting the compromise have been alongwith the supplementary affidavit dated 31.8.2010. By mutual agreement, the revisionist and Sweta-daughter of opposite party no. 2 decided to dissolve their marriage by a decree of divorce and also decided that all cases pending against each other in various courts would be withdrawn. By way of compensation, a sum of Rs. 5 lacs was settled to be paid to Smt Sweta in full and final settlement for all her claims including the maintenance allowance. Reference of case under Section 498 IPC (the present case) was also made in the compromise petition and it was decided that the same would be withdrawn. The compromise petition was supported by an affidavit. Photo-stat copies of two bank drafts amounting to Rs. 4,91,000/- paid to Smt Sweta has been filed alongwith a supplementary affidavit whereas a sum of Rs. 9000/- have already been deposited in the court of Civil Judge (Junior Division), Court No. 5. Sitapur.

Learned counsel for the opposite party no. 2 admitted that parties have settled their dispute mutually and he has no objection if the proceedings between the parties are terminated in terms of compromise.

Offence under Section 498A IPC and Section $\frac{3}{4}$ D.P. Act are not compoundable. However, the Apex Court in case of Madan Mohan Abbot Vs. State of Punjab (2008) 2 Supreme Court Cases (Cri.) 464 observed as under :-

"We need to emphasise that it is perhaps advisable that in disputes where the question involved is of a pure personal nature, the court should ordinarily accept the terms of the compromise even in criminal proceedings as keeping the matter alive with no possibility of a result in favour of the prosecution is a luxury which the courts, grossly overburdened as they are, cannot afford and that the time so saved can be utilised in deciding more effective and meaningful litigation. This is a common sense approach to the matter based on ground of realities and bereft of the technicalities of the law".

Considering the fact that the subject matter of the FIR, subsequent investigation, filing of the final report submitted by the police and also filing of protest petition by the complainant are in relation to matrimonial dispute between revision no. 1 and Smt. Sweta, daughter of opposite party no. 2 and the dispute now stand voluntarily, mutually and amicably settled between the parties vide compromise deed (Annexure no. 1 to the supplementary affidavit of the petitioner dated 31.8.2010), I see no purpose in continuing the criminal proceedings arising out of FIR in question. Moreover the parties have obtained a decree of divorce and all the disputes between them have come to an end by mutual consent. The dispute between the parties is of a purely personal nature. After compromise between the parties, keeping the matter alive with no possibility of a result in favour of the prosecution is a luxury for the Court.

I, therefore, allow the revision. The impugned order dated 10th December, 2009 passed by the Addl. Sessions Judge, Court No. 12, Varanasi in Criminal Revision No. 174 of 2009 and all the proceedings connected therewith are quashed. Final report submitted by the police shall stand accepted and protest petition filed by the complainant shall stand dismissed and the matter stands finally resolved in terms of compromise.

1.10.2010 KU